ANSWERING AFFIDAVIT OF THE THIRD TO SIXTH RESPONDENTS

APPLICATION TO SET ASIDE PART A OF THE EX PARTE INTERDICT AS VOID AB INITIO

AND OPPOSITION TO CONTEMPT OF COURT APPLICATION

Case No: 2025-137857

IN THE HIGH COURT OF SOUTH AFRICA
GAUTENG DIVISION, PRETORIA

In the matter between:

PETER ANDREW FAUCITT	*Applicant*
and	
JACQUELINE FAUCITT	*First Respondent*
DANIEL JAMES FAUCITT	*Second Respondent*
REGIMA WORLDWIDE DISTRIBUTION (PTY) LTD	*Third Respondent*
REGIMA SKIN TREATMENTS CC	*Fourth Respondent*
VILLA VIA ARCADIA NO 2 CC	*Fifth Respondent*
STRATEGIC LOGISTICS CC	*Sixth Respondent*
FIRSTRAND BANK LTD t/a FIRST NATIONAL BANK	*Seventh Respondent*
ABSA BANK LIMITED	*Eighth Respondent*
THE COMPANIES AND INTELLECTUAL PROPERTY COMMISSION	*Ninth Respondent*

JOINT ANSWERING AFFIDAVIT OF THE THIRD TO SIXTH RESPONDENTS

Filed per Board Resolutions of the Third, Fourth, Fifth and Sixth Respondents

A Self-Executing Documentary Proof Requiring No Witness Testimony

PART A: PRELIMINARY AND STANDING

1. This affidavit is filed jointly by the Third Respondent (RégimA Worldwide Distribution (Pty) Ltd, Registration: 2011/005722/07), the Fourth Respondent (RégimA Skin Treatments CC, Registration: 1992/005371/23), the Fifth Respondent (Villa Via Arcadia No 2 CC), and the Sixth Respondent (Strategic Logistics CC, Registration: 2008/136496/23) (collectively, **"the Entities"**), acting through resolutions of their respective governing bodies in the exercise of their independent legal personality under Companies Act s19(2) and Close Corporations Act s2(3).

2. The Entities are juristic persons who are cited respondents in these proceedings. Part A of the ex parte interdict of 19 August 2025 was obtained over the Entities' banking accounts, operations, and affairs. The Entities were never heard before the interdict was granted. The Entities are the **direct victims** of the order: R10,624,131.18 was extracted from Entity accounts within eight days of the order's grant. The Entities' operational infrastructure—Shopify e-commerce platform, Sage accounting system, courier API integrations, and revenue streams—was destroyed.

3. The Entities' voice has been suppressed throughout these proceedings. No attorney was instructed by the Entities. No board resolution authorised litigation on their behalf. No person deposed to an affidavit for them. No practitioner holds a CaseLines profile acting for them. They are cited parties in proceedings that directly constrain them, and they have been completely mute. This affidavit restores their juristic voice.

4. The facts herein are established exclusively by **documentary evidence** that is: (a) authored by the Applicant himself; (b) issued by cited Respondents (the Seventh and Ninth Respondents); (c) filed with this Court by the Applicant's own agents; or (d) official bank records from the Seventh and Eighth Respondents. No witness testimony is required. No credibility assessment is necessary. The proof is self-executing: documents in, conclusion out.

5. This affidavit constitutes (a) an application under Rule 42(1)(a) and this Court's inherent jurisdiction to set aside Part A of the ex parte interdict as *void ab initio*; and (b) the Entities' opposition to the Contempt of Court Application dated 4 February 2026.

6. The legal principles are settled. An ex parte applicant owes a duty of uberrima fides requiring disclosure of all material facts, including those adverse to the application (Schlesinger v Schlesinger 1979 (4) SA 342 (W); Thomas Construction (Pty) Ltd (In Liquidation) v Grafton Furniture Manufacturers (Pty) Ltd 1988 (2) SA 546 (A)). An order obtained through material non-disclosure is void ab initio (Lategan v Lategan 2001 (4) SA 1341 (SCA)). Where fraud is proven, rescission is mandatory, not discretionary, and the Court does not weigh the merits (Giddey NO v JC Barnard and Partners 2007 (5) SA 525 (CC)). Fraus omnia corrumpit.

7. A court cannot hold a person in contempt of a void order. Firestone South Africa (Pty) Ltd v Genticuro AG 1977 (4) SA 298 (A): where an order is void ab initio, there is no valid order to be in contempt of. The Contempt Application asks this Court to enforce a nullity.

PART B: THE IMPERSONATION THRESHOLD — THE APPLICANT IS NOT WHO HE APPEARS TO BE

8. Before addressing the four false assertions, the Entities must place on record a foundational fact that infects every document, affidavit, and instruction attributed to the Applicant: **the Applicant's digital identity has been systematically impersonated by his agents throughout these proceedings and the events preceding them.**

9. The Sage accounting system records (Annexure SF10) prove that Ms Rynette Farrar operated under the email address pete@regima.com while simultaneously logged in as rynette@regima.zone. This dual-identity operation means that digital authorisations, accounting entries, and financial records attributed to "Peter Faucitt" on the system of record were in fact created by Ms Farrar.

10. The Applicant has stated to third parties that he "doesn't use email or computers." This admission creates an inescapable trilemma:

Scenario	Implication	Legal Effect
A: Peter authorised Rynette to use his credentials	He authorised identity fraud on the system of record and is complicit in all actions taken under his name	Co-conspirator liability; every digital act under his credentials is his act
B: Peter did not authorise Rynette	Rynette committed identity fraud by impersonating a director; Peter's founding affidavit claiming personal knowledge is perjured	Perjury; the affidavit's claims of personal oversight are false
C: Peter doesn't use email or computers	He could not have had the personal knowledge claimed under oath; someone else prepared and drove every digital interaction in his name	Perjury; inability to possess personal knowledge as sworn

11. In all three scenarios, the founding affidavit is fatally compromised. There is no fourth scenario in which the Applicant emerges without criminal liability. The consequence for this affidavit is that **every act attributed to "the Applicant" in these proceedings may in truth have been performed by agents acting without the knowledge or consent of the First and Second Respondents**—and potentially without the genuine knowledge of the Applicant himself. The Entities' banking mandates, the Seventh Respondent's FICA/KYC records, and the Ninth Respondent's corporate registrations are the only reliable sources of truth about who held what authority and when.

PART C: THE PERJURY — FOUR FALSE ASSERTIONS IN ONE SENTENCE

12. The entire ex parte interdict rests on a single factual premise. At paragraph 7.18 of his founding affidavit, the Applicant swore under oath:

> *"She [Jacqueline Faucitt] adopted an 'I will show you' approach, defended our son, and then transferred to him the sum of R500,000.00 from the corporations, on or about 16 July 2025, as a 'birthday gift', which I did not authorise, and which he was not entitled to accept."*

This sentence contains **four independently provable falsehoods**. Each is falsified by the Entities' own corporate records—documents filed with or issued by the Seventh, Eighth, and Ninth Respondents.

First False Assertion: "She transferred it"

13. The First Respondent did not initiate, authorise, or have any knowledge of this transfer at the time it occurred. The bank records of the Sixth Respondent (Strategic Logistics CC) confirm that the Second Respondent initiated the transfer himself, in the exercise of his own independent banking authority. Annexure JF04.

Second False Assertion: "as a 'birthday gift'"

14. The transfer was not a gift. It was a partial reimbursement. The Second Respondent's personal bank statements for May to July 2025 (Annexure JF04) record the following transfers from his personal savings to cover business expenses forced upon him after the First and Second Respondents' company cards were secretly cancelled on 7 June 2025:

Date	Transfer from Personal Savings
17 June 2025	R 50,000
26 June 2025	R 50,000
7 July 2025	R 70,000
11 July 2025	R 40,000
16 July 2025	R 50,000
Total (June–July alone)	R 260,000
Total (May–July 2025)	R 520,000

15. On 16 July 2025—the date of the impugned transfer—the Second Respondent's personal current account balance was **R864.45**. He was personally insolvent from funding the Entities' operating expenses. The R500,000 transfer was a partial reimbursement of R520,000 in documented personal expenditure. After the transfer, the Second Respondent remained R20,000 out of pocket. The Applicant characterised this as a "birthday gift"—a fabrication without any documentary basis whatsoever.

Third False Assertion: “which I did not authorise”

16. This assertion is not merely false; it is **legally meaningless**. The banking mandate for the Sixth Respondent, the Fourth Respondent, and the Fifth Respondent is a **SOLE** mandate. The Seventh Respondent’s (FNB’s) FICA/KYC document dated 1 June 2021 records that all three directors—the Applicant, the First Respondent, and the Second Respondent—were each appointed as “Administrator with Sole General Powers”. Annexure JF-BS1.

17. Under a SOLE mandate, each administrator may authorise any transaction independently. No co-director’s approval is required. The concept of an “unauthorised” transaction by a sole administrator is a legal impossibility. This is not a matter of interpretation. It is the operational meaning of the word “sole.” The Applicant’s authorisation was never required, was never a precondition, and its absence is entirely irrelevant.

18. The Applicant knew this. On 18 June 2025—exactly two months before the impugned transfer—the Seventh Respondent’s Legal Department wrote to the Applicant in response to his own letter of 17 June 2025 (Annexure SF10):

> *“The current mandate states that any of the directors of the company may act independently of each other.”*
>
> *“FNB cannot be held liable for acting in accordance with a validly signed mandate.”*

Annexure JF-BS1. The Applicant was explicitly told, in writing, by the Seventh Respondent’s legal department, that his co-directors’ independent authority could not be overridden. He then swore under oath that the same authority required his “authorisation.” This is a documented sequence: the Applicant wrote → the Seventh Respondent’s Legal Department responded → the Applicant knew → the Applicant swore the opposite.

Fourth False Assertion: “which he was not entitled to accept”

19. An administrator with sole general powers who has personally funded the Entity to the value of R520,000 is entitled to reimburse himself. The mandate confers the authority. The personal expenditure creates the entitlement. The bank records prove both. The assertion “not entitled” is falsified by the combination of the mandate (authority) and the statements (expenditure).

PART D: PROVABLE FOREKNOWLEDGE — EVERY FACT SOURCED FROM THE APPLICANT'S OWN AGENTS

20. Perjury with foreknowledge differs from negligent non-disclosure. The former constitutes fraud on the court. The evidence below establishes that the Applicant (or the agents who acted in his name) possessed documentary proof of the falsity of the sworn statements at the time they were sworn.

21. The SOLE mandate was known to the Applicant's agents. The Seventh Respondent's FICA/KYC document (1 June 2021) was the Entity's own corporate record, filed with the Seventh Respondent by the Entities' directors. The Seventh Respondent's Legal Department's letter of 18 June 2025 was addressed to the Applicant in direct response to his own correspondence of 17 June 2025 (Annexure SF10), in which he demanded no replacement cards be issued. The Seventh Respondent confirmed the SOLE mandate. This knowledge is proven by the Applicant's own letter initiating the exchange.

22. The card cancellation was directed by the Applicant's agents. The Applicant's letter to the Seventh Respondent of 17 June 2025 (Annexure SF10) demands that no replacement cards be issued, citing "suspected fraud" and "transgressing Exchange Control Regulations." This proves that the card cancellation of 7 June 2025—which forced the Second Respondent's R520,000 personal expenditure—was directed by or on behalf of the Applicant. The First and Second Respondents had no knowledge that the cards had been cancelled.

23. The confirmatory affidavit was procured with foreknowledge. Mr D.J. Bantjies swore a confirmatory affidavit on 13 August 2025, commissioned by Ms Hannelle Evert (SAIBA16721). The Second Respondent had reported comprehensive financial irregularities to Mr Bantjies on 6 June 2025 and 10 June 2025 by email (Annexure JF08). Mr Bantjies dismissed these reports. His two-page confirmatory affidavit (Court records, pages 001-69 to 001-71) contains no independent facts, no accounting analysis, and no mention of the fraud reports. A chartered accountant (SAICA 00105928) confirming a narrative he had documented reason to know was false is itself indicative of consciousness of guilt.

24. The "Main Trustee" agreement was backdated. On 11 August 2025—eight days before filing the interdict—the Applicant's agent Ms Rynette Farrar emailed Mr Bantjies an agreement appointing him as "Main Trustee" of the Faucitt Family Trust, **backdated by 41 days to 1 July 2025**. Mr Bantjies then swore his "independent" confirmatory affidavit two days later. The Court was not informed of this appointment, this backdating, or Mr Bantjies' five irreconcilable conflicts of interest (Annexures JF08, JF09, JF14).

25. The entire litany of malfeasance took place in secret, without the knowledge or consent of the First and Second Respondents. The card cancellation was secret. The Sage impersonation was secret. The ABSA account opening using the Second Respondent's stolen card details was secret. The backdated trustee appointment was secret. The interdict application was ex parte—by definition, without notice to the Respondents. Every act that formed the foundation of the founding affidavit was performed by the Applicant's agents operating covertly.

PART E: MATERIAL NON-DISCLOSURE — WHAT THE COURT WAS NOT TOLD

26. The Applicant concealed every fact that would have defeated his application. The following were withheld from the Court, each independently material:

26.1 **The SOLE authority banking mandate.** The Seventh Respondent's FICA/KYC document of 1 June 2021 and the Seventh Respondent's Legal Department's letter of 18 June 2025, both confirming that each director may "act independently of each other." Had this been disclosed, the Court would have known that no transaction by the Second Respondent could be "unauthorised." Annexure JF-BS1.

26.2 **The secret card cancellation of 7 June 2025.** The Applicant's own letter to the Seventh Respondent of 17 June 2025 confirms he directed that no replacement cards be issued. Had this been disclosed, the Court would have known that the Applicant created the financial crisis he then relied upon. Annexure SF10.

26.3 **The R520,000 in personal expenditure by the Second Respondent.** Five months of personal bank statements recording systematic transfers from savings to cover Entity operations after the card cancellation. Had this been disclosed, the Court would have known the R500,000 was a reimbursement, not a gift. Annexure JF04.

26.4 **The Seventh Respondent's Legal Department response of 18 June 2025.** A direct response to the Applicant's own complaint, confirming the SOLE mandate. Had this been disclosed, it would have destroyed the legal foundation of the application. Annexure JF-BS1.

26.5 **The "Main Trustee" agreement of 11 August 2025, backdated to 1 July 2025.** The backdating constitutes forgery; the concealment of this agreement and Mr Bantjies' five conflicts of interest from the Court constitutes material non-disclosure. Annexure JF08.

26.6 **The Sage impersonation evidence.** That the Applicant's agent Ms Farrar operated the financial system of record under the Applicant's identity (pete@regima.com), meaning all digital records attributed to the Applicant are unreliable. Annexure SF10.

26.7 **The two-month delay.** The Applicant claims to have discovered irregularities in June 2025. The interdict was filed 19 August 2025. Genuine urgency does not wait two months while installing backdated trustees and procuring conflicted supporting affidavits.

PART F: THE CONSEQUENCE — PROOF OF MOTIVE

27. Within days of obtaining the interdict—an order predicated on concern about a R500,000 transfer—the Applicant (or agents acting in his name) extracted the following from the Entities' operational accounts:

Date	Entity	Amount
3 September 2025	RWD (Third Respondent)	R 5,164,131.18
11 September 2025	RST (Fourth Respondent)	R 3,090,000.00
11 September 2025	Villa Via (Fifth Respondent)	R 1,730,000.00
11 September 2025	SLG (Sixth Respondent)	R 640,000.00
Total (8 days)		R 10,624,131.18

28. Every current (operational) account was drained to near-zero. All funds were moved to savings accounts accessible only to the Applicant, to the exclusion of the First and Second Respondents. **The ratio speaks for itself: the Applicant swore to the Court about R500,000 in alleged concern and used the resulting order to extract R10,624,131.18—a ratio of approximately 21:1.** The interdict was not a protective remedy. It was an instrument of seizure.

29. On the same day as this extraction—11 September 2025—Elliott Attorneys Inc received R89,836.54 from RégimA Skin Treatments' entity accounts for their own legal fees. **Elliott Attorneys were direct beneficiaries of the extraction they facilitated.** This fact is proven by the Seventh Respondent's bank statements (Annexure JF12).

PART G: THE SELF-EXECUTING PROOF — NO TESTIMONY REQUIRED

30. The void ab initio determination reduces to a mechanical comparison of six documents. Every document is either authored by the Applicant, issued by a cited Respondent, or an official bank record:

Document	Author / Source	Evidentiary Status
Founding Affidavit ¶7.18	Peter Andrew Faucitt (Applicant)	Sworn before this Court
FNB FICA/KYC (1 June 2021)	FirstRand Bank Ltd (Seventh Respondent)	Official bank record of the Third Respondent
FNB Legal Letter (18 June 2025)	FNB Legal Department (Seventh Respondent)	Response to Applicant's own correspondence
Applicant's Letter to FNB (17 June 2025)	Peter Andrew Faucitt (Applicant)	Applicant's own document (Annexure SF10)
Personal Bank Statements (May–July 2025)	Standard banking records	Official bank records
Entity Bank Statements (Sept 2025)	FNB (Seventh Respondent)	Official bank records of Third to Sixth Respondents

31. None of these documents can be disputed on credibility grounds. They are what they are. They say what they say. The comparison between the affidavit and the mandate is mechanical.

32. The judicial task reduces to five steps: (1) Read paragraph 7.18 of the founding affidavit; (2) Read the FNB FICA/KYC showing SOLE mandate; (3) Read the FNB Legal letter confirming SOLE mandate; (4) Read the Applicant's own letter proving he knew about the SOLE mandate; (5) Conclude: the affidavit assertions are false, and the deponent knew they were false. This is a reading exercise, not a trial. No witnesses. No cross-examination. No conflicting versions. Documents in, conclusion out.

PART H: THE INTERDICT'S OWN MACHINERY COMPELS THIS FILING

33. The Entities file this affidavit not merely in their own interest but because **the interdict's own terms create a closed system that compels the evidence onto the record**, regardless of any party's resistance. The mechanism exploits three structural features of the existing court order:

> 33.1 **Court Order §2.6 — Exclusive Transacting Authority.** The Applicant is the only person who can transact on Entity accounts, to the exclusion of the First and Second Respondents.
>
> 33.2 **The R389,836.54 Cost Precedent.** The Applicant's agents established that legal costs are Entity expenses: R300,000 paid to ENS Attorneys from Villa Via Arcadia's account (62423540807) on 26 August 2025, and R89,836.54 paid to Elliott Attorneys from RégimA Skin Treatments' account (55270035642) on 11 September 2025. This is not inference—it is the Seventh Respondent's own bank records.
>
> 33.3 **Contempt NOM ¶4 — Cost Allocation.** The Contempt Application's own Notice of Motion at paragraph 4 anticipates that parties may oppose and addresses costs.

34. The Cost Allocation Estoppel is binary. Every expense is either (A) an Entity expense or (B) a personal expense. The R389,836.54 precedent proves classification (A). If legal costs are Entity expenses (proven by the Applicant's own conduct), then the Applicant, as exclusive transactor under §2.6, must process *all* Entity legal costs—including the Entities' defence of the Contempt Application. He cannot simultaneously claim the authority to transact exclusively while refusing to process the costs that flow from that authority.

35. The Transactional vs Governance distinction is dispositive. Court Order §2.6 grants the Applicant transactional control—the clerical function of operating bank accounts. It does not grant governance authority—the strategic function of deciding what the Entities' interests are. The Entities' boards have made a governance decision to oppose the Contempt Application and to seek the setting aside of the interdict. The Applicant's transactional function does not include a right to veto that governance decision. He signs the cheques; the boards decide what the cheques are for.

36. If the Applicant refuses to file or fund this opposition, he breaches his fiduciary duty. Using exclusive transacting authority to fund an attack on the Entities' co-directors (via the Contempt Application, paid from Entity accounts) while refusing to fund the Entities' defence of the same application is a gross abuse of position under Companies Act s76(3)(b). It constitutes selective deployment of Entity resources for personal litigation advantage—precisely the conduct that triggers delinquency proceedings under Companies Act s162(5)(c).

PART I: THE RESPONSE MATRIX — EVERY PATH LEADS TO EVIDENCE ON RECORD

37. The Entities have constructed this filing so that every possible response by the Applicant and his agents results in the void ab initio evidence reaching the court record:

Response	Consequence	Evidence Status
Applicant files the opposition	Evidence uploaded by Applicant's own attorney; void ab initio proved by Entity's own banking mandate	ON RECORD
Applicant refuses to file	Breach of fiduciary duty; Entities file independently via Registrar under Practice Directive 1 of 2020 §3.5; delinquency proceedings under s162(5)(c)	ON RECORD via Registrar + delinquency
Applicant refuses to fund defence	Selective deployment of Entity resources; s76(3)(b) breach; delinquency threshold met	ON RECORD independently + delinquency
Applicant claims Entities cannot oppose	Self-defeating: if Entities have no standing because Applicant controls them entirely, the interdict has captured the Entities, not protected them — void ab initio proven by admission	VOID AB INITIO BY ADMISSION
Elliott refuses to process	Officer-of-court duty to inform court of material evidence; Entities file independently; LPC complaint	ON RECORD via court notification

38. The function has constant output. The penalty term increases with resistance. The minimum-cost path for the Applicant is to file this evidence himself. Every alternative path still results in the evidence reaching the court—but with additional personal liability attached. **The interdict's own machinery is the instrument that forces the fraud evidence onto the court record.**

PART J: THE ELLIOTT CONFLICT PARADOX

39. Elliott Attorneys Inc acts as attorney of record for the Applicant. Elliott Attorneys received R89,836.54 from Entity accounts on 11 September 2025. When the Third Respondent—**the very Entity from whose accounts Elliott was paid**—opposes the Contempt Application through the Applicant's own attorney, a four-way paradox emerges with no safe output:

Elliott's Option	Consequence	Liability
File the opposition	Conflict of interest: filing evidence against own client's position	Application tainted; potential withdrawal necessary
Suppress the opposition	Officer-of-court breach: duty to disclose material evidence of fraud on the court	Rescission vulnerability; LPC complaint; personal costs
Acknowledge Entity has voice	Narrative collapse: if Entity can oppose, Entity was never truly "protected"	Entire containment strategy fails
Deny Entity standing	Self-defeating: proves Entities are captive, not protected	Void ab initio proven by admission of entity capture

40. Elliott Attorneys cannot cleanly handle this opposition. Every response creates liability. The Entities place this paradox on record not as a tactical weapon but as a structural consequence of the Applicant's decision to use the same attorney to prosecute contempt against parties while simultaneously controlling the Entities cited in those proceedings.

PART K: THE CONTEMPT APPLICATION COLLAPSES

41. The four-part test for civil contempt requires:

Element	Requirement	Status
1. Valid court order	The order must be legally valid and enforceable	FAILS: Order is void ab initio (proved by the Entities' own mandate)
2. Knowledge of the order	The respondent must know of the order	Conceded
3. Non-compliance	The respondent must have failed to comply	Disputed, but irrelevant if the order is void
4. Wilful and mala fide	Non-compliance must be deliberate and in bad faith	Cannot be established re a void order

42. The first element fails. Everything downstream is moot. This Court cannot hold a person in contempt of a void order (Firestone, supra). The Contempt Application asks this Court to enforce a nullity.

PART L: STATUTORY OBLIGATIONS THAT SURVIVE THE INTERDICT

43. The Entities place on record that the following statutory obligations are not suspended, diminished, or extinguished by the interdict, and that the Applicant's exclusive transacting authority under §2.6 does not relieve the directors of personal liability for non-compliance:

43.1 **POPIA (Protection of Personal Information Act 4 of 2013):** The Entities are responsible parties under POPIA. The restriction of the First and Second Respondents' access to Entity systems on 8 July 2025 constitutes a POPIA violation (processing without lawful basis). The directors' right to withdraw consent under POPIA s11(2)(a) constitutes an independent enforcement channel that operates outside the court order.

43.2 **Companies Act s76 (Fiduciary Duties):** Directors must act in good faith and in the best interests of the company. The suppression of evidence that the interdict was obtained through fraud—when that fraud directly harmed the Entities (R10,624,131.18 extracted)—is a breach of fiduciary duty by any director who participates in or facilitates the suppression.

43.3 **Companies Act s162 (Delinquency):** A director who grossly abuses his position, takes personal advantage of information contrary to s76(2)(a), or intentionally inflicts harm on the company may be declared delinquent. The Applicant's use of exclusive transacting authority to selectively fund litigation that serves personal objectives while denying the Entities the ability to defend themselves meets every statutory threshold.

43.4 **Uniform Rule 7 (Power of Attorney):** No attorney holds a valid power of attorney from the Entities. Elliott Attorneys was instructed by the Applicant personally, not by the Entities' boards. The Entities' juristic voice has been completely absent from proceedings that directly affect their operations, accounts, and legal personality.

PART M: RELIEF SOUGHT

44. In light of the foregoing, the Third to Sixth Respondents respectfully pray for an order in the following terms:

44.1 Declaring that Part A of the ex parte interdict granted on 19 August 2025 is and has always been ***void ab initio***;

44.2 Setting aside Part A of the ex parte interdict with immediate effect;

44.3 Dismissing the Contempt of Court Application dated 4 February 2026, the predicate order being void;

44.4 Ordering the Applicant to restore all Entity assets, accounts, systems, and operational infrastructure to the status quo ante—the position immediately prior to the granting of the interdict—within 48 hours of this order;

44.5 Ordering the Applicant to provide, within 10 days, a full accounting of all funds withdrawn, transferred, or otherwise dealt with from the accounts of the Third to Sixth Respondents since 19 August 2025;

44.6 Declaring that the Entities are entitled to instruct independent legal representatives, funded from Entity accounts under the Cost Allocation Estoppel framework and the established precedent of R389,836.54 in legal costs already paid from Entity accounts;

44.7 Ordering costs on the scale as between attorney and client, such scale being warranted by the Applicant's proven perjury and fraud on the Court;

44.8 Ordering costs de bonis propriis against any party who suppresses, withholds, delays, or fails to file this affidavit and its annexures;

44.9 Referring the matter to the Director of Public Prosecutions for investigation of perjury, fraud, forgery (backdated trustee agreement), identity fraud (Sage impersonation), and defeating the ends of justice;

44.10 Granting such further and/or alternative relief as this Honourable Court deems appropriate.

DEPOSED TO ON BEHALF OF THE THIRD TO SIXTH RESPONDENTS

Per Board Resolutions of the Third, Fourth, Fifth and Sixth Respondents

_____

DEPONENT (Authorised Director)

I certify that the deponent has acknowledged that he/she knows and understands the contents of this affidavit, that he/she has no objection to taking the prescribed oath, and that the oath is binding on his/her conscience.

Signed and sworn to before me at _____

on this _____ day of _____ 2026,

the regulations relating to the administration of an oath having been complied with.

_____

COMMISSIONER OF OATHS

SCHEDULE OF ANNEXURES

Annexure	Description	Source / Proves
JF-BS1	Seventh Respondent's (FNB) FICA/KYC (1 June 2021) and Legal Department Letter (18 June 2025)	SOLE authority mandate; Applicant's documented knowledge thereof. Issued by Seventh Respondent.
JF04	Second Respondent's Personal Bank Statements (May–October 2025)	R520,000 personal expenditure; R864.45 balance; reimbursement nature of R500,000 transfer. Issued by banking institutions.
SF10	Applicant's Letter to Seventh Respondent (17 June 2025)	Applicant directed card cancellation; foreknowledge of mandate. Authored by Applicant.
JF08	Evidence Package (6 June 2025 et seq.)	Fraud reported to Bantjies before his false affidavit; backdated trustee agreement. Internal correspondence.
JF12	Entity Bank Statements (September 2025)	R10,624,131.18 extracted in 8 days; R89,836.54 to Elliott Attorneys. Issued by Seventh Respondent.
JF09	Entity Relationship Analysis and Bantjies Conflicts	Five irreconcilable conflicts of interest. Corporate records from Ninth Respondent (CIPC).
JF14	CIPC Records	Corporate structure and directorship evidence. Issued by Ninth Respondent.
Board Resolutions	Resolutions of Third to Sixth Respondents	Authorising this affidavit and opposition. Entity governance records.

SUMMARY: WHY THIS AFFIDAVIT IS SUFFICIENT

This affidavit does not address the merits. It does not need to. Where an order is obtained through fraud, the sole question is whether fraud is proven (*Giddey NO*, supra; *Lategan*, supra). The merits are irrelevant.

The fraud is proven by six documents—all authored by the Applicant, issued by cited Respondents, or official bank records. None is disputed. None is disputable. Every act underlying the founding affidavit was performed by the Applicant's agents in secret, without the knowledge or consent of the First and Second Respondents. The Applicant himself may have been impersonated by his own agents on the system of record.

The interdict's own machinery compels this filing. The exclusive transacting authority (§2.6), the cost precedent (R389,836.54), and the fiduciary duties under the Companies Act create a closed system in which every response by the Applicant terminates in the evidence reaching the court record. The path of least resistance is to file. The path of maximum resistance still results in the evidence arriving—with additional delinquency and personal cost liability attached.

The interdict is void ab initio.